

TENTATIVE RULING

Case: **MCG Land and Farms, LLC v. Steele**
Case No. CV2025-2469

Hearing Date: **March 3, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Christopher Steele and Capay Valley Ranches, Inc.'s demurrer is **CONTINUED** to **March 26, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: Soliven v. Morales
Case No. CV2025-2329

Hearing Date: March 3, 2026 **Department Eleven** **9:00 a.m.**

Demurrer:

Defendant Felix G. Morales' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendant's demurrer as to the first cause of action for partition of real property by sale is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the first amended complaint ("FAC") does not state facts sufficient for this cause of action. (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035; *Regalado v. Regalado* (1961) 198 Cal.App.2d 549, 553-554; Code Civ. Proc., §§ 872.140, 874.010; Defendant's RJN, Exhibit B ["FAC"], ¶¶ 10-19.)

Defendant's demurrer as to the second cause of action for declaratory relief is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the FAC does not state facts sufficient for this cause of action. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605-606; Code Civ. Proc., § 1060; FAC, ¶¶ 10 & 20-24.) The FAC alleges an actual controversy between the parties. (FAC, ¶ 10, 15-16, 21, & 24.)

Defendant's demurrer as to the third cause of action for breach of oral contract is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the FAC does not state facts sufficient for this cause of action. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; FAC, ¶¶ 10, 15-16, & 25-28.) While defendant asserts that the FAC fails to allege defendant breached the parties' agreement, the Court finds that the FAC contains sufficient allegations as to this element. (FAC, ¶¶ 15-16 & 26.)

Defendant's demurrer as to the fourth cause of action for constructive trust is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) "A constructive trust...is an equitable *remedy*, not a substantive claim for relief." (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 398, emphasis in original; see also *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76; FAC, ¶¶ 29-37.) This is not a cause of action, but the Court grants leave to amend to allow plaintiff to add constructive trust as a sought remedy. (See FAC, Prayer for Relief.)

Defendant's demurrer as to the entire FAC based on the sham pleading doctrine is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint and the FAC contain contradictory allegations, such that the sham pleading doctrine applies. (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 637, fn. 22; see Defendant's RJN, Exhibit A; FAC.)